

Assam State Electricity Board (Chairman's Powers) Rules, 1962

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State of Assam - Act

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Assam State Electricity Board (Chairman's Powers) Rules, 1962

Rule ASSAM-STATE-ELECTRICITY-BOARD-CHAIRMAN-S-POWERS-RULES-1962 of 1962

Published on 12 September 1962

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Assam State Electricity Board (Chairman's Powers) Rules, 1962

Published vide Notification No. PDEL 111/58/43, dated 12.9.1962

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Notification No. PDEL 111/58/43, dated 12.9.1962. - In exercise of the powers conferred by sub-section (2) of Section 78 of the Electricity (Supply) Act, 1948 (Act 54 of 1948), the Governor of Assam is pleased to make the following rules, the same having been previously published as required under sub-section (1) of the said section, namely:-

1.

Short title.

- There rules may be called the Assam State Electricity Board (Chairman's Powers) Rules, 1962.

2.

Definitions.

- In these rules, unless the context otherwise requires,-

(1)

'Act' means the Electricity (Supply) Act, 1948 ;

(2)

'Board' means the State Electricity Board constituted under Section 5 of the Act;

(3)

'Chairman' means the Chairman of the Board appointed under Section 5(5) of the Act;

(4)

'Committee' means the Local Advisory Committee constituted under Section 17 of the Act;

(5)

'Council' means the State Electricity Consultative Council constituted under Section 16 of the Act ;

(6)

'Government' means the State Government of Assam.

3.

Responsibility of Chairman.

- the Chairman shall be responsible for properly carrying out the directions and decisions of the Board.

4.

Liaison between the Government and the Board.

- The Chairman shall function as a liaison between the Government and the Board in matters arising out of the administration of the Act, to the extent the Government is concerned.

5.

Difference of opinion to be reported.

- The Chairman may bring to the notice of the Government any difference of opinion on matters of policy, arising between him and the other members of the Board. He may also similarly refer any other matters of policy to the Government and place the directions received from them for consideration and action by the Board.

6.

Alteration in the period of notice of meeting.

- The Chairman may determine, at his discretion, the period of notice of any particular meeting of the Council.

7.

Placing new matters before meeting.

- The Chairman may bring or cause to bring any new matter which in his opinion is urgent before any meeting of the Council with or without giving notice.

8.

Matters not to be discussed.

- The Chairman shall, if in his opinion it would be contrary to the public interest to discuss or answer any particular matter relating to the Board at a meeting of the Council, exercise his discretion to disallow such matter.

9.

Prohibition of disclosure of confidential information.

- No member of the Council except with the previous permission of the Chairman in writing, shall disclose to any person, other than a member of the Board or of the Council, any information relating to the affairs of the Council or allow such person to inspect or have access to any books, documents or the papers relating to the business of the council or of a Committee, which are required to be treated as confidential.

10.

Approval of Agenda.

- The Chairman shall approve the agenda for meeting of the Board as also of the Council including the fixation of date, time and place of meetings.

11.

Casting vote.

- The Chairman of the Board shall be entitled to vote, and in the event of equality of votes, he shall have the casting or second vote in the meetings of the Board.

12.

Decision on point of order.

- Any point of order raised at the meeting of the Council shall be decided by the Chairman, and his decision thereon shall be final.

13.

Performance of journeys outside the jurisdiction of the Board.

- The Chairman shall be competent to allow the members and officers of the Board to undertake journeys for the performance of the duties of the Board, outside the jurisdiction of the Board, and also to make arrangements for carrying out the functions and duties of such members and officers in their absence.

14.

Distribution of duties and functions.

- Subject to the provisions of the Act, the Chairman shall distribute the duties and functions between members, Secretaries and other officers of the Board, and matters pertaining to the disposal of the case/work in the Secretariat of the Board on such subjects that are not to be included in the regular agenda of the Board's meeting.

15.

Controlling Officer in respect of travelling allowance and medical bills.

- The Chairman shall be the controlling officer in respect of travelling and other allowances (if any) admissible to the members of the Council.

16.

Sanctioning of casual leave to members, etc.

- The Chairman shall be responsible for sanctioning casual leave to members of the Board and casual leave and other kinds of leave without substitute, to the Secretary of the Board.

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